

Rachit Choksi

From: Neal M. Mayer <nmayer@hmc-law.com>
Sent: Thursday, January 7, 2016 1 13 PM
To: Rachit Choksi; Robert Blair; John Moran; David J Tubman; Jewel M. Jennings-Wright
Subject: Petition No P5-15 Petition of Pacific International Lines and Mariana Express Lines for an Exemption from Commission Regulations

Happy New Year! I hope 2016 is a terrific year for all of you.

This subject Petition was filed on October 13. It was noticed in the Federal Register without any comments being received. As far as we know it is unopposed and non-controversial.

Simply stated, PIL owns 65% of Marianas Express Line Ltd ("MELL") and controls MELL. Because PIL and MELL are both ocean common carriers their cooperation in any number of matters would require filing agreements with the FMC. We have asked that the Commission exempt PIL and MELL from these requirements in the same way the Commission has exempted an ocean common carrier parent and its 100% owned subsidiary ocean common carriers. We know of no other parent/subsidiary relationship among ocean common carriers that this Petition would affect. If there was one, we would presume they would have filed comments.

Given the lack of comments or opposition, I am concerned that this matter has not been moved to a conclusion. The Commission should recognize that this is a matter of some urgency for PIL and MELL in that there are matters of cooperation they wish to undertake that they cannot do until the Petition is granted.

I would very much appreciate your looking into this and seeing what can be done to get this matter finalized.

Thanks you for your assistance.

All my best

Neal

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